

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahreem Khan	Team: Squad #06	CCRB Case #: 202304213	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 05/05/2023 9:40 PM, Friday, 05/05/2023 11:40 PM	Location of Incident: In front of § 87(2)(b) and the 75th Precinct stationhouse	18 Mo. SOL 11/5/2024	Precinct: 75		
Date/Time CV Reported Tue, 05/09/2023 4:49 PM	CV Reported At: CCRB	How CV Reported: Social Media	Date/Time Received at CCRB Tue, 05/09/2023 4:49 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. LT Gabriel Cuevas	00000	945633	083 PCT
3. PO Andrew Paulino	19209	970058	BN SU CRT
4. PO Stefan Weaver	12423	965901	BN SU CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT James Elliott	04608	951710	075 PCT
2. PO Lester Haynes	07304	954922	075 PCT
3. PO Christopher Stelmach	19816	966870	075 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Stefan Weaver	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . PO Stefan Weaver	Force: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver used physical force against § 87(2)(b)	B . Substantiated
C . PO Andrew Paulino	Force: At § 87(2)(b) in Brooklyn, Police Officer Andrew Paulino used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . LT Gabriel Cuevas	Force: At § 87(2)(b) in Brooklyn, Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)	D . Substantiated
E . PO Stefan Weaver	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver frisked § 87(2)(b)	E . Substantiated
F . PO Stefan Weaver	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver searched the vehicle in which § 87(2)(b) was an occupant.	F . Substantiated
G . PO Stefan Weaver	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver searched § 87(2)(b)	G . Substantiated
H . PO Stefan Weaver	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver damaged § 87(2)(b) property.	H . Unable to Determine
I . LT Gabriel Cuevas	Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Gabriel Cuevas gestured discourteously toward § 87(2)(b)	I . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
J . LT Gabriel Cuevas	Force: At § 87(2)(b) in Brooklyn, Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . LT Gabriel Cuevas	Discourtesy: At the 75th Precinct stationhouse, Lieutenant Gabriel Cuevas spoke discourteously to § 87(2)(b)	K . Substantiated
L . Officers	Abuse: At the 75th Precinct stationhouse in Brooklyn, officers improperly used their body-worn cameras.	L . Within NYPD Guidelines
M . LT Gabriel Cuevas	Abuse: At the 75th Precinct stationhouse in Brooklyn, Lieutenant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.	M . Substantiated
N . PO Stefan Weaver	Abuse: At the 75th Precinct stationhouse in Brooklyn, Police Officer Stefan Weaver failed to provide § 87(2)(b) with a business card.	N . Unable to Determine
O . PO Andrew Paulino	Abuse: At the 75th Precinct stationhouse in Brooklyn, Police Officer Andrew Paulino failed to provide § 87(2)(b) with a business card.	O . Within NYPD Guidelines

Case Summary

On May 9, 2023, the CCRB received this complaint through social media after the CCRB was tagged in a comment.

On May 5, 2023, at approximately 9:40 p.m., § 87(2)(b) was in his vehicle outside of § 87(2)(b) in Brooklyn, when Police Officer Stefan Weaver, of the Brooklyn North Community Response Team, stopped § 87(2)(b) (**Allegation A: Abuse of Authority, substantiated**). Lieutenant Gabriel Cuevas, of the 83rd Precinct, arrived as well as Police Officer Andrew Paulino, of the Brooklyn North Community Response Team. § 87(2)(b) was ordered to exit his vehicle and all three officers pulled him out (**Allegation B: Force, substantiated; Allegation C: Force, within NYPD guidelines; Allegation D: Force, substantiated**). PO Weaver frisked § 87(2)(b) hoodie pocket, searched § 87(2)(b) vehicle, and later entered his wallet for § 87(2)(b) identification (**Allegations E – G: Abuse of Authority, substantiated**). When PO Weaver returned § 87(2)(b) identification to him, PO Weaver broke § 87(2)(b) license (**Allegation H: Abuse of Authority, unable to determine**). While speaking with § 87(2)(b) Lt. Cuevas opened and closed his hand as if to mock a talking gesture (**Allegations I: Discourtesy, substantiated**). Lt. Cuevas pushed § 87(2)(b) who was already in handcuffs, towards the unmarked patrol vehicle (**subsumed under Allegation D, substantiated**). Once § 87(2)(b) was seated inside of the patrol vehicle, § 87(2)(b) § 87(2)(b) family friend, placed her hand inside of the patrol vehicle. Lt. Cuevas grabbed § 87(2)(b) hand and moved it back, causing § 87(2)(b) to physically move back as well (**Allegation J: Force, within NYPD guidelines**). The officers transported § 87(2)(b) to the 75th Precinct stationhouse.

On the same day, while in front of the desk at the 75th Precinct, § 87(2)(b) asked Lt. Cuevas what the initial stop was for and why the officers assaulted him. Lt. Cuevas asked § 87(2)(b) to spell the word *assault* (**Allegation K: Discourtesy, substantiated**). Lt. Cuevas, PO Weaver, and PO Paulino all deactivated their body-worn cameras (BWCs) prior to § 87(2)(b) being placed in the cells (**Allegation L: Abuse of Authority, within NYPD guidelines**). After § 87(2)(b) was released from the 75th Precinct stationhouse, he requested Lt. Cuevas', PO Weaver's, and PO Paulino's business cards, none of whom provided them (**Allegation M: Abuse of Authority, substantiated; Allegation N: Abuse of Authority, unable to determine; Allegation O: Abuse of Authority, within NYPD guidelines**). PO Paulino issued § 87(2)(b) a C-Summons number § 87(2)(b) for disorderly conduct for disrupting the community (**BR 29**).

On May 12, 2023, the CCRB obtained a link to the TikTok video that captured this incident (**BR 1**). On June 2, 2023, the NYPD Legal Unit provided the CCRB with seven BWCs related to this incident (**BR 2 – 8**). On April 1, 2024, the NYPD Legal Unit provided negative results for BWC being activated again later regarding the same incident (**BR 9**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver stopped the vehicle in which § 87(2)(b) was an occupant.

PO Weaver's BWC (**BR 3**) opens with PO Weaver in the back seat of the RMP. At 00:31, PO Weaver steps out of the RMP, which is in the opposite direction of traffic from § 87(2)(b) vehicle—a white BMW. He approaches § 87(2)(b) vehicle and the driver's side door is already open. § 87(2)(b) is seated inside the driver's seat and the vehicle appears to be on. § 87(2)(b) appears to be stating something. At 00:38, PO Weaver pushes the driver's side door open even more. At 00:43, § 87(2)(b) appears to try to close his vehicle door. He unhooks his phone from its charger. At 00:46, PO Weaver appears to grab § 87(2)(b) left forearm with his right hand and § 87(2)(b) removes his hand from PO Weaver's grasp. PO Weaver then tries to grab § 87(2)(b) right hand that he holds his phone in. As audio activates at 00:59, § 87(2)(b) asks PO Weaver for a reason. PO Weaver tells § 87(2)(b) to get out of the vehicle. Lt. Cuevas is heard in the

background telling § 87(2)(b) to lower his voice. Lt. Cuevas tells his officers to get § 87(2)(b) out of the vehicle. § 87(2)(b) then steps out of his vehicle on his own.

§ 87(2)(b) (BR 10) stated that at approximately 9:30 a.m. § 87(2)(b) exited his home, located at § 87(2)(b) in Brooklyn and walked to the Smoke Shop that was two stores down when realized he forgot his wallet in his white BMW X6 that was parked directly outside of his home. § 87(2)(b) exited the store and looked around to be aware of his surroundings. § 87(2)(b) noted that on this day, he wore a lot of necklace chains and did not want to be robbed. § 87(2)(b) observed a black Ford sedan driving slowly down Sutter Avenue and felt as if someone was watching him. While one of the windows on the unmarked vehicle was partially cracked open, § 87(2)(b) could not see anyone inside as the windows were tinted. The unmarked vehicle proceeded down Sutter Avenue and turned right, § 87(2)(b) proceeded to his vehicle, opened the driver's side door, sat inside, kept one leg out of the vehicle so the driver's side door remained open, and retrieved his wallet from the center console. § 87(2)(b) vehicle was on. Shortly after, § 87(2)(b) felt someone grab his arm while he was seated in his vehicle. § 87(2)(b) turned around and saw PO Weaver holding his arm. § 87(2)(b) asked PO Weaver why he was grabbing his arm. PO Weaver did not provide an explanation. Within a minute, Lt. Cuevas and PO Paulino arrived as well, instructed § 87(2)(b) to exit the vehicle without providing a reason why, and then all three officers grabbed different parts of § 87(2)(b) arms and clothes to get him out of his vehicle.

PO Weaver (BR 11) testified that at approximately 9:40 p.m., he was in the rear passenger seat of an unmarked vehicle with Lt. Cuevas and PO Paulino. PO Weaver's window was cracked, leaving his police patch visible. The officers were driving westbound on Sutter Avenue and saw § 87(2)(b) walking in the opposite direction, eastbound on the north side of the sidewalk. § 87(2)(b) had both of his hands inside his hoodie pockets in a rested position as if to try and keep his hands warm. Inside of one of the pockets that § 87(2)(b) hand was in, PO Weaver saw a three-corner triangular bulge, resembling a firearm, around § 87(2)(b) torso. After § 87(2)(b) saw the officers, his facial expression changed from a resting position to widening his eyes and cringing his eyebrows, "got very nervous," and moved his hands from a resting position to pushing his hands further down in his pockets, as if he were holding onto the triangular object observed. § 87(2)(b) increased his pace and looked over his shoulder back at the officers to see if they were still looking at him. Officers made a U-turn, PO Weaver exited his vehicle, and approached § 87(2)(b). § 87(2)(b) was getting into a white BMW while blading his body away from PO Weaver. PO Weaver observed § 87(2)(b) remove an object from his right hoodie pocket and place it inside the center console. PO Weaver did not see the object, nor did he know if it was that same three-point triangular object that resembled the shape of a firearm. PO Weaver was concerned that the item § 87(2)(b) placed in the center console was a firearm as it appeared that § 87(2)(b) was trying to get rid of it from his hoodie pocket and hide it into the center console. PO Weaver assumed that this was likely why § 87(2)(b) hastened to his vehicle and continued to look back at PO Weaver. PO Weaver approached § 87(2)(b) vehicle and said, "Hey, Police! What's that in your pocket?" § 87(2)(b) responded that there was nothing in his pocket. PO Weaver grabbed both of § 87(2)(b) wrists for safety reasons as he did not want § 87(2)(b) reaching for whatever he had placed in the center console and asked him to step out of the vehicle.

Lt. Cuevas (BR 12) stated that the officers' vehicle was four to five car lengths away from § 87(2)(b) when PO Weaver first pointed him out. Lt. Cuevas could not tell if § 87(2)(b) had any bulges on his clothing from where he was sitting. The officers made a U-turn and Lt. Cuevas exited after PO Weaver. Lt. Cuevas approached PO Weaver and § 87(2)(b) at the driver's side of § 87(2)(b) vehicle. Lt. Cuevas could hear § 87(2)(b) being "uncooperative" and screaming "... at the top of his lungs." § 87(2)(b) asked what the reason was, said he did not do anything, asked that he be recorded, said he was not getting out, and told an officer he was being recorded. § 87(2)(b) was being uncooperative by refusing to listen to the officers' lawful order to exit the

vehicle. Lt. Cuevas did not recall whether § 87(2)(b) engine was on. PO Weaver grabbed on to § 87(2)(b) forearms and the officers began to tell him to exit the vehicle. § 87(2)(b) refused. PO Weaver was grabbing § 87(2)(b) forearm for safety since he was concerned about a firearm placed inside the vehicle. § 87(2)(b) was flailing his arms from PO Weaver grabbing his forearm. Lt. Cuevas personally issued § 87(2)(b) multiple commands to exit the vehicle at this point for § 87(2)(b) and the officers' safety. He noted during his CCRB interview that § 87(2)(b) was being stopped for suspicion of possession of a firearm. Lt. Cuevas ordered the officers to escort § 87(2)(b) out of the vehicle and § 87(2)(b) got out on his own.

PO Paulino (BR 13) testified that he saw that § 87(2)(b) had something in his front hoodie pocket but could not see what it was as PO Paulino was focused on driving straight. PO Paulino later stated that he observed both of § 87(2)(b) hands in his pockets and was unable to articulate anything else about the item he observed in § 87(2)(b) pocket. At one point, § 87(2)(b) walked in the same direction that the officers' vehicle was traveling in, sped up his walking pace, and entered a white BMW, at which point PO Weaver made a decision to exit the police vehicle alone while PO Paulino was still driving when PO Weaver approached § 87(2)(b) driver's side door, which was still open. Lt. Cuevas and then PO Paulino exited the police vehicle and approached § 87(2)(b) vehicle.

PO Weaver completed Stop Report Number § 87(2)(b) (BR 14), which noted factors leading to the stop were the concealing or possession of a weapon. The narrative notes that § 87(2)(b) was observed walking at a rapid pace of speed after making eye contact with officers. § 87(2)(b) had both of his hands in his front hoodie pocket, which showed an imprint of a heavy, long, rectangular pointed object that appeared to be consistent with a slide and barrel of a gun. § 87(2)(b) then entered a white BMW, left his driver's side door open, shifted his body towards the center console, and reached into that area. Officers removed § 87(2)(b) from his vehicle, the center console and immediate areas within the vehicle were searched, and only § 87(2)(b) wallet was found in the center console. Officers did not find any firearms. § 87(2)(b) was frisked. He was later searched when he was brought back to the stationhouse to be issued a C Summons for acting disorderly.

As BWC confirmed that § 87(2)(b) vehicle was on at the time of the stop, PO Weaver proceeded to conduct a vehicle search, and Lt. Cuevas asked for § 87(2)(b) license, registration, and proof of insurance, this allegation is pleaded as a vehicle stop.

Officers may lawfully stop a vehicle in which a defendant is riding after they observed several traffic infringements, People v. Scott, 216 A.D.3d 552 (2023) (BR 20). Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, the Criminal Procedure Law authorizes a forcible stop and detention of that person, People v. DeBour, 40 N.Y.2d 210 (1976) (BR 15). Behavior which is susceptible of innocent as well as guilty interpretation cannot constitute probable cause and "innocuous behavior alone will not generate a founded or reasonable suspicion that a crime is at hand," as noted in People v. Miller, 121 A.D.2d 335 (1986) (BR 16).

It is undisputed that PO Weaver suspected § 87(2)(b) of having a firearm and initiated the stop.

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§ 87(2)(b) This incident occurred at night and PO Weaver made this observation with at least one lane of traffic between him and § 87(2)(b)

it is recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Force: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver used physical force against § 87(2)(b)

Allegation (C) Force: At § 87(2)(b) in Brooklyn, Police Officer Andrew Paulino used physical force against § 87(2)(b)

Allegation (D) Force: At § 87(2)(b) in Brooklyn, Lieutenant Gabriel Cuevas used physical force against § 87(2)(b)

At 00:46 of PO Weaver's BWC (**BR 3**), PO Weaver appears to grab § 87(2)(b) left forearm with his right hand and § 87(2)(b) removes his hand from PO Weaver's grasp. PO Weaver then tries to grab § 87(2)(b) right hand that he holds his phone in. As audio activates at 00:59, § 87(2)(b) asks PO Weaver for a reason. PO Weaver tells § 87(2)(b) to get out of the vehicle. Lt. Cuevas is heard in the background telling § 87(2)(b) to lower his voice. Lt. Cuevas tells his officers to get § 87(2)(b) out of the vehicle. § 87(2)(b) then steps out of his vehicle on his own.

At 01:27 of PO Paulino's BWC (**BR 4**), Lt. Cuevas tells his officers, "Get him out." PO Paulino grabs § 87(2)(b) left wrist with his right hand as Lt. Cuevas places his hand on § 87(2)(b) front jacket pockets and under his arms. At 01:46, Lt. Cuevas tells § 87(2)(b) to "stop," as he grabs the middle of § 87(2)(b) sweater with his right hand, clenches the fabric in his hand, and pulls the sweater up. At 02:10, § 87(2)(b) turns his body slightly towards Lt. Cuevas to walk away. Lt. Cuevas uses his two open palms and pushes § 87(2)(b) back by making contact with § 87(2)(b) chest and pushes him back. PO Paulino places a hand on § 87(2)(b) stomach to hold him back as well. As Lt. Cuevas pushes § 87(2)(b) back, he tells him to calm down and to stop moving several times. By 05:35, § 87(2)(b) is successfully placed into handcuffs. PO Weaver and § 87(2)(b) stand outside of the right rear passenger door. At 05:40, Lt. Cuevas pushes § 87(2)(b) further towards the RMP while PO Weaver leans into the RMP, pulling § 87(2)(b) closer as he moves. At 05:50, § 87(2)(b) sits in the RMP.

At 01:40 of Lt. Cuevas's BWC (**BR 6**), § 87(2)(b) stands outside of his vehicle and asks Lt. Cuevas what the problem is. Lt. Cuevas then directs § 87(2)(b) to walk to the rear of the vehicle. PO Paulino guides § 87(2)(b) to the rear by putting his hand around § 87(2)(b) torso and moving him to the rear. § 87(2)(b) tells the officers that they do not need to touch him and that they only need to tell him what to do. At 01:52, PO Cuevas tells § 87(2)(b) to stop multiple times, grabs him by the right bicep and then yells at him to "stand here," as § 87(2)(b) asks the officers to tell him what to do and to not touch him. At 02:16, § 87(2)(b) moves his body slightly and Lt. Cuevas pushes § 87(2)(b) by his torso and moves him back. PO Paulino holds § 87(2)(b) by placing his hand on § 87(2)(b) stomach. Lt. Cuevas yells at § 87(2)(b) three times to stop moving. § 87(2)(b) tells the officers to back up "off of" him as he did not break any laws. At 02:29, Lt. Cuevas asks § 87(2)(b) for his license, registration, and proof of insurance. § 87(2)(b) moves his body to go retrieve the documents that Lt. Cuevas requested. Lt. Cuevas grabs § 87(2)(b) hand and pushes him back against his vehicle. § 87(2)(b) tells Lt. Cuevas that he was getting the paperwork and then asks Lt. Cuevas why he pushed § 87(2)(b) if he asked § 87(2)(b)

for the paperwork. Lt. Cuevas then yells for PO Weaver to get § 87(2)(b) license as he points towards the driver's seat. PO Paulino appears to maintain hold of § 87(2)(b) sweater.

§ 87(2)(b) (BR 10) stated he felt someone grab his arm while he was seated in his vehicle. § 87(2)(b) turned around and saw PO Weaver holding his arm. § 87(2)(b) asked PO Weaver why he was grabbing his arm. PO Weaver did not provide an explanation. Within a minute, Lt. Cuevas and PO Paulino arrived as well, instructed § 87(2)(b) to exit the vehicle without providing a reason why, and then all three officers proceeded to grab different parts of § 87(2)(b) arms and clothes to get § 87(2)(b) out of his vehicle. Once he was outside, PO Paulino and Lt. Cuevas grabbed § 87(2)(b) shirt and shoved him towards the rear of his vehicle. At the rear of his vehicle, Lt. Cuevas asked § 87(2)(b) for his driver's license and vehicle registration. As § 87(2)(b) slightly moved his body to go retrieve the documents [from his vehicle], Lt. Cuevas shoved § 87(2)(b) by his chest and stomach backwards while instructing § 87(2)(b) not to move. Lt. Cuevas directed PO Weaver to retrieve § 87(2)(b) documents, to which § 87(2)(b) responded that he did not consent to officers entering his vehicle.

PO Weaver (BR 11) testified that he approached § 87(2)(b) vehicle and said, "Hey, Police! What's that in your pocket?" § 87(2)(b) responded that there was nothing in his pocket. As soon as PO Weaver closed the distance between him and § 87(2)(b) PO Weaver grabbed both of § 87(2)(b) wrists for safety reasons as he did not want § 87(2)(b) reaching for whatever he had placed in the center console. PO Weaver maintained control of § 87(2)(b) hands and asked him to step out of the vehicle so they could interact outside. § 87(2)(b) became "very loud," verbally combative, not listening to the instructions and orders that PO Weaver was giving him to step out, tensing up his arms as if he did not want PO Weaver touching him, and said "nothing in my pocket" several times. A few seconds later, PO Paulino and Lt. Cuevas arrived as well. All three officers ordered § 87(2)(b) to step out of the vehicle. PO Weaver and PO Paulino were holding § 87(2)(b) hands and guided him out of the vehicle. PO Weaver did not see PO Paulino or Lt. Cuevas pull § 87(2)(b) out of his vehicle. PO Weaver explained that he did not pull § 87(2)(b) out of the vehicle as § 87(2)(b) stepped out of his own volition. After exiting the vehicle, PO Paulino and Lt. Cuevas both instructed § 87(2)(b) to go to the rear of his vehicle and § 87(2)(b) complied. PO Weaver did not recall seeing Lt. Cuevas make any contact with § 87(2)(b) at this point.

Lt. Cuevas (BR 12) stated that PO Weaver was grabbing § 87(2)(b) forearm for safety since he was concerned about a firearm placed inside the vehicle. § 87(2)(b) was flailing his arms. Lt. Cuevas ordered the officers to escort § 87(2)(b) out of the vehicle and § 87(2)(b) got out on his own. Lt. Cuevas grabbed onto § 87(2)(b) sweater towards his side directly above his waist and walked with him to guide him to the rear of his vehicle. As Lt. Cuevas moved in one direction, he maintained hold of § 87(2)(b) and moved him along in the same direction. Lt. Cuevas needed to guide § 87(2)(b) to the rear so that he would not get away from the officers. PO Paulino was also guiding § 87(2)(b) towards the rear by grabbing onto his sweater but did not recall what part of § 87(2)(b) body PO Paulino grabbed. The fact that § 87(2)(b) would not stand still, "...kept maneuvering his body..." was blading his body away from the officers, was flailing his arms, and was not listening to any commands the officers gave indicated to Lt. Cuevas that § 87(2)(b) was trying to get away from him. § 87(2)(b) was receptive to being guided and did not physically resist in any way at this point. Lt. Cuevas did not shove § 87(2)(b) when he was guiding him to the rear of the vehicle. The guiding motion did not involve pushing in any capacity. He did not recall whether he saw PO Paulino shove § 87(2)(b) when he was taking him from the driver seat of the vehicle to its rear. A vehicle report was not prepared for this incident because the vehicle was not pulled over and it was not a vehicle stop. Several seconds of PO Paulino's first BWC video were played from 05:29. Lt. Cuevas acknowledged pushing § 87(2)(b). He stated it was a "process" to get § 87(2)(b) into handcuffs and that he actively resisted the officers placing

handcuffs on him. Lt. Cuevas pushed § 87(2)(b) to the vehicle to place him inside.

PO Paulino (**BR 13**) testified that by the time PO Paulino reached PO Weaver and Lt. Cuevas, they were already directing § 87(2)(b) to the rear of his vehicle as § 87(2)(b) had passed the rear passenger door. PO Paulino did not see PO Weaver patting § 87(2)(b) body down as PO Paulino was still driving at this point. PO Paulino had guided § 87(2)(b) from the corner of the trunk towards the middle of the trunk as § 87(2)(b) was not moving. § 87(2)(b) was considered to be detained at this point for suspicion of having a firearm and for the disorderly manner in which he was behaving on the street. PO Paulino later stated that § 87(2)(b) was moving around a lot as would not stand still and was flailing his arms a lot to the left and right with his palms facing outward. § 87(2)(b) was not staying where the officers directed him to. PO Paulino guided § 87(2)(b) by his hip area every time he moved. At one point, PO Paulino grabbed § 87(2)(b) shirt, which happened to be his left pocket. PO Paulino did not frisk § 87(2)(b) left pocket, nor did he intentionally touch § 87(2)(b) left shirt pocket. He recalled guiding him to the rear as § 87(2)(b) was initially refusing to exit the vehicle and was pulling his hands away from PO Weaver. PO Paulino added that at that point, the officers could have forcefully removed him from the vehicle. PO Paulino did not recall if he or other officers pushed § 87(2)(b). He recalled grabbing § 87(2)(b) by the waist and maybe someone else grabbed his arms and guided him to the rear.

Force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: the nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, among other criteria, NYPD Patrol Guide Procedure 221-01 (BR 21).

§ 87(2)(g)

§ 87(2)(g) BWC confirms that PO Weaver grabbed § 87(2)(b) hands while he was still in the vehicle. § 87(2)(g) § 87(2)(g) BWC captures Lt. Cuevas shoving § 87(2)(b) several times with force § 87(2)(g), once § 87(2)(b) is handcuffed, Lt. Cuevas pushed § 87(2)(b) towards the police vehicle without issuing him any commands. § 87(2)(g) § 87(2)(g) It is recommended that **Allegations B and D** be closed as **substantiated**.

In People v. Ketcham, 93 N.Y.2d 416 (1999), the Court determined that probable cause can be established by demonstrating an officer's reliability and his basis of knowledge. When analyzing the admissibility of evidence recovered the Court found that "When a hearsay informant is a police officer who imparts to fellow officers' information gathered while personally participating, there is little doubt as to the reliability of the informant or the basis of knowledge" (**BR 22**).

PO Paulino was the third officer to arrive on scene after PO Weaver told him that he believed § 87(2)(b) to be in possession of a firearm. § 87(2)(g) Each time PO Weaver made contact with § 87(2)(b) it was in the presence of Lt. Cuevas and/or PO Weaver § 87(2)(g)

§ 87(2)(g) It is recommended that **Allegation C** be closed as **within NYPD guidelines**.

Allegation (E) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver frisked § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (G) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver searched § 87(2)(b)

As audio activates on PO Weaver's BWC (**BR 3**) § 87(2)(b) asks PO Weaver for a reason for the stop. The first minute of the BWC there is no audio. PO Weaver approaches § 87(2)(b) at 00:35 and the two engage in what appears to be a conversation. At 01:48, PO Weaver appears to pick something up that is on the floor outside of the vehicle and places inside of the floor of the vehicle. PO Weaver then leans into § 87(2)(b) vehicle and looks at the passenger seat of the vehicle. At 02:10, PO Weaver opens § 87(2)(b) left rear passenger side door. § 87(2)(b) is heard yelling in the background, "I don't consent!" PO Weaver enters the back passenger seat of the vehicle and looks around the seats, moving the cushions that are on them. PO Weaver then exits the back passenger seat and closes the vehicle door. At 02:19, PO Weaver again opens the driver's side door, enters the driver's seat, leans over, and closes the glove compartment that was open in the front passenger's seat. He exits the vehicle at 02:26 and goes to the rear of the vehicle where Lt. Cuevas and PO Paulino stand in front of § 87(2)(b). Lt. Cuevas asks § 87(2)(b) for his license. § 87(2)(b) begins to move his body to go retrieve his license. Lt. Cuevas grabs § 87(2)(b) left wrist and pushes him to the right. § 87(2)(b) asks Lt. Cuevas that he was going to get his license, asks why Lt. Cuevas pushed him if he asked for his license. At 02:33, Lt. Cuevas points towards the front of § 87(2)(b) vehicle and yells at PO Weaver to retrieve § 87(2)(b) license. At 02:38, PO Weaver returns to § 87(2)(b) driver's side door again, opens the vehicle, enters the vehicle, and looks on the floor of the vehicle and then looks inside of the center console storage area, where he pulls a wallet out. PO Weaver then opens the wallet, removes § 87(2)(b) identification, places the wallet onto the driver's seat, and then reaches back towards the center console before exiting the vehicle at 03:00.

At 02:16 of Lt. Cuevas's BWC (**BR 6**), § 87(2)(b) moves his body slightly and Lt. Cuevas pushes § 87(2)(b) by his torso and moves him back. § 87(2)(b) tells the officers to back up "off of" him as he did not break any laws. At 02:37, § 87(2)(b) yells multiple times that he does not consent to any officer going inside of § 87(2)(b) vehicle. Lt. Cuevas says, "All that screaming is not going to work." § 87(2)(b) asks the officers what their reason was for the stop. Lt. Cuevas repeats that § 87(2)(b) screaming is "not going to work." At 03:00, § 87(2)(b) tells the officers not to search his vehicle. PO Weaver is visible on camera one second later and § 87(2)(b) states, "You went in my wallet. Illegally." § 87(2)(b) then states that he wants everyone's cards when they are done. § 87(2)(b) states that he is not resisting in any way and tells the officers to do what they have to do. § 87(2)(b) again asks why the officers stopped him. Lt. Cuevas states to § 87(2)(b) "Keep going. It works for me." § 87(2)(b) tells Lt. Cuevas to make sure that his body camera is on as he will be "FOIL'ing it." At 09:39, Lt. Cuevas returns to his vehicle and states that was "wild." § 87(2)(b) states that the officers were wild. Lt. Cuevas responds and says, "You're a wild man." § 87(2)(b) states that he did not break or violate any law and the officers still have not told him what law he violated. Officers transport § 87(2)(b) to the 75th Precinct stationhouse. At 14:25, § 87(2)(b) is at the 75th Precinct stationhouse and asks the Desk Sergeant for a supervisor. Lt. Cuevas states that he is the supervisor. § 87(2)(b) asks if what the officers did was right. Lt. Cuevas's response was not audible. § 87(2)(b) asks what the initial stop was for and Lt. Cuevas

states that they will talk later. § 87(2)(b) states that he wants the reason on camera and Lt. Cuevas responds, “Good luck, my man.” § 87(2)(b) and Lt. Cuevas go back and forth regarding what the initial stop was for, and Lt. Cuevas does not answer. Rather, he states that § 87(2)(b) is being charged with Disorderly Conduct.

§ 87(2)(b) (BR 10) stated that as PO Paulino and Lt. Cuevas moved § 87(2)(b) went to the rear of his vehicle, PO Weaver entered § 87(2)(b) vehicle and searched the driver’s seat, the arm rest/center console area, and under the driver’s. § 87(2)(b) did not see PO Weaver open any other car doors or the trunk. Lt. Cuevas then directed PO Weaver to retrieve § 87(2)(b) documents, to which § 87(2)(b) responded that he did not consent to officers entering his vehicle. PO Weaver returned from § 87(2)(b) vehicle with § 87(2)(b) identification, ran his name, and informed Lt. Cuevas about not finding anything for § 87(2)(b). At this point, § 87(2)(b) voice was raised as he told the officers that they removed him from his vehicle for no reason, did not respond when § 87(2)(b) asked several times about what law he broke. None of the officers provided § 87(2)(b) with a reason why they interacted with him. Once § 87(2)(b) was transported to the 75th Precinct stationhouse, § 87(2)(b) asked Lt. Cuevas what he was being charged with, and Lt. Cuevas stated, “disorderly conduct.” § 87(2)(b) then asked what the initial stop was for. Lt. Cuevas responded, “You’re not going to know that.”

PO Weaver (BR 11) testified that after § 87(2)(b) exited the vehicle, PO Weaver frisked § 87(2)(b) hoodie pocket, as he had been focused on it, but did not find anything. PO Weaver did not frisk any other part of § 87(2)(b) body. PO Weaver’s concern at this point was not to “get shot.” Once § 87(2)(b) was at the rear of the vehicle, PO Weaver thought that § 87(2)(b) left the firearm in the center console but later testified to not seeing § 87(2)(b) place said firearm in the center console. As such, PO Weaver immediately looked into the center console, which is where he saw two cell phones, one of which was plugged into a charger. PO Weaver then looked in the driver’s seat, on the floor, underneath the driver’s seat, on the foot area, the front of the vehicle, and the back seat of the vehicle. PO Weaver looked anywhere that § 87(2)(b) may have had the firearm. PO Weaver opened the glove compartment and then closed it. PO Weaver reasoned that he did not need § 87(2)(b) permission to search his vehicle because after all of the signs and actions that PO Weaver had already mentioned he observed § 87(2)(b) portray, he believed § 87(2)(b) had a firearm. PO Weaver did not find a firearm during his search of § 87(2)(b) vehicle. After PO Weaver’s search, he was directed by Lt. Cuevas to retrieve § 87(2)(b) identification. § 87(2)(b) was not permitted to return to his vehicle as PO Weaver suspected him of having a firearm and despite PO Weaver’s quick search of § 87(2)(b) vehicle, PO Weaver returned to § 87(2)(b) vehicle, found his wallet on the driver’s seat, removed his driver’s license from the wallet, and returned to the rear of the vehicle where he ran a warrant check on § 87(2)(b) and received negative results. PO Weaver did not explain the reason for stopping § 87(2)(b) when he initially approached him because PO Weaver was not tactically safe. He suspected § 87(2)(b) of having a firearm and did not want § 87(2)(b) to become nervous, pull out the firearm and shoot PO Weaver because § 87(2)(b) was panicking or scared.

Lt. Cuevas (BR 12) stated that as he guided § 87(2)(b) to the rear of the vehicle, § 87(2)(b) asked him why he was being stopped and this was essentially all § 87(2)(b) said to Lt. Cuevas at this time. Lt. Cuevas stood at the rear of the vehicle with PO Paulino, PO Weaver investigated the location where he believed § 87(2)(b) possibly tossed a firearm. Lt. Cuevas was unsure where PO Weaver looked inside the vehicle. Consent was not needed prior to PO Weaver entering the vehicle to search for the firearm because the officers had reasonable suspicion to believe there was a firearm in § 87(2)(b) “...immediate, grabbable, lunge-able area.” Lt. Cuevas eventually explained his rationale for stopping § 87(2)(b) to him. He did not do so upon initially interacting with him because this was “impossible,” given that § 87(2)(b) was not being cooperative and was not listening to anything the officers said. Lt. Cuevas conversed with § 87(2)(b) in the cell area

about his arrest process once his BWC was deactivated. PO Weaver also spoke with § 87(2)(b) about the same thing. § 87(2)(b) was told why the initial stop for Criminal Possession of a Weapon happened during the arrest process, but Lt. Cuevas did not recall who did so. Lt. Cuevas recalled a viewing video off the record showing § 87(2)(b) asking him why he was initially stopped while at the desk. Lt. Cuevas did not tell § 87(2)(b) at this point because he was not required to do so.

PO Paulino (**BR 13**) testified that he was not aware if PO Weaver searched § 87(2)(b) vehicle as PO Paulino was focused on § 87(2)(b) who was in front of him. PO Paulino, however, heard § 87(2)(b) state that the officers did not have consent to search his vehicle.

A frisk is authorized when an officer reasonably suspects an individual to be armed and dangerous. This includes situations in which the officer reasonably suspects that the person has committed, is committing, or is about to commit a violent crime or when an officer observes something on the person that she/he reasonably suspects is a weapon (**BR 23**). “Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person. A corollary of the statutory right to temporarily detain for questioning is the authority to frisk if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed” People v. DeBour 40 N.Y.2d 210 (1976) (**BR 24**).

§ 87(2)(g)
§ 87(2)(b)

it is recommended that **Allegation E** be closed as **substantiated**.

The New York State Supreme Court has held that exigent circumstances can justify a search of a vehicle short of probable cause based on a context that provides for a strong likelihood that there is a weapon inside of it. This includes learning that a weapon located within the vehicle presents an actual and specific danger to officer’s safety and whether it demonstrates the perpetrator’s readiness and willingness to use a deadly weapon, People v. O’Neal, 248 A.D.2d 561 (1998) (**BR 17**). When NYPD officers believe that there exists probable cause that seize-able property or wanted persons are present at a particular location, they are supposed to approach the legal owner or lawful custodian of the address, vehicle or item to be searched and request permission to conduct a consent search. The officer must ask for consent to search in a manner that elicits a clear “yes” or “no” response, follow up by explicitly saying, “I can only conduct a search, if you consent,” specifically ask the person, “do you understand?” and, if a consent search is conducted, offer the person a contact card with a rank, name, shield and command captions completed NYPD Patrol Guide Operations Order 50 (**BR 18**). According to the Right to Know Act section § 14-173, officers need to first obtain voluntary, knowing, and intelligent consent prior to the search of a person, or a person’s vehicle...when such search is not conducted pursuant to a warrant, any other exception to the warrant requirement under applicable law, or probable cause, or when such search is not incident to a lawful arrest...officers must use plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and explaining that such search will not be conducted if such person refuses to provide consent to such search (**BR 19**).

PO Weaver stated that after he did not feel the object he believed to be a firearm in § 87(2)(b) pocket, he searched the center console, the driver’s seat, on the floor, underneath the driver’s seat, the foot area, the front of the vehicle, the glove compartment, and the back seat of the vehicle without obtaining consent from § 87(2)(b) § 87(2)(g) § 87(2)(b).

§ 87(2)(g)

he only observed § 87(2)(b) leaning his body in that direction. § 87(2)(g)

It is recommended that **allegations F and G** be closed as **substantiated**.

Allegation (H) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Stefan Weaver damaged § 87(2)(b) property.

At 04:11 of PO Weaver's BWC (**BR 3**), PO Weaver returns to Lt. Cuevas and tells him something that is inaudible. Lt. Cuevas asks PO Weaver if he is 100% sure, and PO Weaver states that he is. § 87(2)(b) then tries to get his identification back from PO Weaver and tells him to return his identification several times. § 87(2)(b) then states that PO Weaver "ripped" § 87(2)(b) identification. At 04:53, § 87(2)(b) holds up the identification to PO Weaver's camera to show that a piece of his license had broken off.

§ 87(2)(b) (**BR 10**) stated that as PO Weaver held § 87(2)(b) identification, a piece of § 87(2)(b) ID fell to the ground. PO Weaver put his foot over the broken piece as if to hide it.

PO Weaver (**BR 11**) testified that as he held § 87(2)(b) identification, he felt a small crease in the ID like there was a crack towards its side. PO Weaver attempted to return § 87(2)(b) ID but ripped a part of the ID. PO Weaver maintained hold of the remainder of § 87(2)(b) ID. PO Weaver did not break the ID. At this point, § 87(2)(b) began screaming and yelling even more.

Lt. Cuevas (**BR 12**) stated that § 87(2)(b) accused PO Weaver of destroying his driver's license and was upset by this. Lt. Cuevas observed that the license was "broken," as if it were cut by a scissor or sharp object. Lt. Cuevas did not see § 87(2)(b) license before it had broken and believed it was previously damaged.

PO Paulino (**BR 13**) testified that after PO Weaver retrieved § 87(2)(b) ID and later tried to hand the ID to § 87(2)(b) alleged that his ID was damaged. PO Paulino, however, did not know how the ID was damaged.

§ 87(2)(b) alleged that PO Weaver broke § 87(2)(b) identification. PO Weaver noted that the ID was already damaged. Both PO Weaver and Lt. Cuevas testified that when § 87(2)(b) took the ID from PO Weaver, a piece of the ID broke. PO Paulino did not observe the damage. BWC does not capture the state of the ID prior to it breaking.

§ 87(2)(g)

It is recommended that **Allegation H** be closed as **unable to determine**.

Allegation (I) Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Gabriel Cuevas gestured discourteously toward § 87(2)(b)

A 05:08 of PO Paulino's first BWC (**BR 4**), Lt. Cuevas tells § 87(2)(b) mother that § 87(2)(b) is fine. § 87(2)(b) responds by stating that he is not fine. § 87(2)(b) begins to yell at Lt. Cuevas,

hands inside of police vehicles in this circumstance, where someone is under arrest. Lt. Cuevas noted that she could be passing § 87(2)(b) contraband and that this posed a danger.

Force may be used when it is reasonable to place a person in custody or to prevent escape from custody. Any application of force must be reasonable under the circumstance and the following should be considered in determining whether it is reasonable: the nature and severity of the crime/circumstance, actions taken by the subject, duration of the action, immediacy of perceived threat or harm to the subject, MOS, or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, among other criteria, NYPD Patrol Guide Procedure 221-01 (BR 21).

It is undisputed that § 87(2)(b) placed her hand inside of the unmarked patrol vehicle in which § 87(2)(b) was placed after he was handcuffed. § 87(2)(g)

It is recommended that **Allegation J** be closed as **within NYPD guidelines**.

Allegation (K) Discourtesy: At the 75th Precinct stationhouse, Lieutenant Gabriel Cuevas spoke discourteously to § 87(2)(b)

At 15:46 of Lt. Cuevas's BWC (BR 6), § 87(2)(b) asks Lt. Cuevas why he assaulted § 87(2)(b) first. Lt. Cuevas responds, "Take off... Assault?" § 87(2)(b) says yes and Lt. Cuevas replies, "Spell it," as he places a property bag on the desk. Lt. Cuevas does not appear to be speaking to any other officer at this time as PO Paulino, PO Weaver, and the Desk Sergeant are not looking at or speaking to Lt. Cuevas. The Desk Sergeant, who is looking at his computer, briefly glances towards Lt. Cuevas, reaches for a property bag, and then continues to look at the computer screens. The Desk Sergeant does not type anything during this conversation. § 87(2)(b) asks why Lt. Cuevas was grabbing § 87(2)(b). Lt. Cuevas again states, "Spell it." § 87(2)(b) asks Lt. Cuevas if he wants § 87(2)(b) to spell the word "assault," and then asks if § 87(2)(b) looks illiterate to Lt. Cuevas, who does not respond. At 15:57, as Lt. Cuevas states that § 87(2)(b) jewelry needs to come off, PO Paulino looks at Lt. Cuevas and nods. § 87(2)(b) again asks Lt. Cuevas if § 87(2)(b) looks illiterate to him. Lt. Cuevas responds, "No, you don't." § 87(2)(b) asks why Lt. Cuevas wanted him to spell then. Lt. Cuevas responds, "Just stop." § 87(2)(b) again asks why he was initially stopped. Lt. Cuevas states that he will tell him later. § 87(2)(b) responds that Lt. Cuevas has been saying the same thing.

§ 87(2)(b) (BR 10) stated that at the 75th Precinct stationhouse, § 87(2)(b) asked Lt. Cuevas what he was being charged with, and Lt. Cuevas stated, "disorderly conduct." § 87(2)(b) then asked what the initial stop was for. Lt. Cuevas responded, "You're not going to know that." § 87(2)(b) told Lt. Cuevas that he was violating his rights. Lt. Cuevas states something along the lines of "Can you spell...", which § 87(2)(b) understood to be Lt. Cuevas insinuating that § 87(2)(b) was dumb or stupid. § 87(2)(b) asked Lt. Cuevas if he thought § 87(2)(b) was illiterate and then stated that Lt. Cuevas would be hearing from § 87(2)(b) attorney. After that point, Lt. Cuevas did not make any additional statements.

Lt. Cuevas (BR 12) testified that § 87(2)(b) was removed to the 75th Precinct stationhouse for processing. Once at the stationhouse, § 87(2)(b) was presented in front of the desk. Lt. Cuevas did "not really" have any conversation with § 87(2)(b) at the desk and denied ever asking him to spell the word "assault." Lt. Cuevas testified that he directed the phrase, "Spell it out" to Officer Paulino because Lt. Cuevas needed § 87(2)(b) name spelled out for the desk officer to input into the prisoner holding pen roster. § 87(2)(b) believed Lt. Cuevas was saying this to him as he made a comment about illiteracy a few times, and this was why he did not reply to § 87(2)(b). The

investigation noted that § 87(2)(b) states Lt. Cuevas assaulted him, and that Lt. Cuevas replies, “Assault. Spell it.” Lt. Cuevas confirmed he did not ask § 87(2)(b) to spell assault at this point.

Officers are prohibited from using disrespectful remarks regarding ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability, NYPD Patrol Guide Procedure 203-10 (BR 26).

§ 87(2)(b) stated that Lt. Cuevas asked him if he could spell something, which he interpreted as Lt. Cuevas inferring that § 87(2)(b) is illiterate. BWC captures § 87(2)(b) asking Lt. Cuevas why he assaulted § 87(2)(b). In response, Lt. Cuevas said, “Assault? Spell it.” He asked § 87(2)(b) again to spell it. When § 87(2)(b) asked if Lt. Cuevas believed § 87(2)(b) to be illiterate, Lt. Cuevas did not respond. § 87(2)(g)

§ 87(2)(b) BWC shows that Lt. Cuevas was not speaking to PO Paulino, PO Weaver, or the Desk Sergeant during this conversation, nor were any of these officers writing anything during this portion of the incident. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation K** be closed as **substantiated**.

Allegation (L) Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, officers improperly used their body-worn cameras.

At 19:25 of Lt. Cuevas’s BWC (BR 6), Lt. Cuevas is at the front desk and PO Weaver walks § 87(2)(b) to the cells. Lt. Cuevas’ BWC deactivates once § 87(2)(b) is no longer visible.

At 19:32 minutes of PO Weaver’s BWC (BR 3) § 87(2)(b) is taken towards the cells, where PO Weaver removes the handcuffs. At 22:05, Lt. Cuevas arrives in the cell area. At 22:53, PO Weaver points at his BWC and Lt. Cuevas looks at it. PO Weaver puts it back on his person and turns it off.

At 07:53 of Paulino’s second BWC (BR 5) shows that after § 87(2)(b) is searched and is seated in a chair, Lt. Cuevas tells PO Paulino to “Go off.” BWC deactivates right after.

§ 87(2)(b) (BR 10) stated that at the 75th Precinct, § 87(2)(b) was taken to the fingerprinting area by PO Weaver, PO Paulino, and Lt. Cuevas. All three officers then turned off their BWC.

Lt. Cuevas (BR 12) testified that he directed his officers to deactivate their BWCs once § 87(2)(b) search within the holding cells was completed. Per procedure, the officers were not required to keep their BWCs on once this search was complete and § 87(2)(b) was lodged in the cells. Lt. Cuevas stated, “Once he enters that cell block, he’s in the cell.”

PO Weaver (BR 11) testified that he deactivated his BWC after being instructed to do so by Lt. Cuevas. PO Paulino (BR 13) testified that he deactivated his BWC after the officers had taken all of § 87(2)(b) property and placed it in a property bag.

Officers must record arrests until the prisoner is lodged at the command for arrest processing NYPD Patrol Guide Procedure 212-123 (BR 27).

§ 87(2)(g) Lt. Cuevas’ BWC shows that he deactivated his camera while he was still behind the desk and did not accompany the officers into the cell block immediately. Both PO Weaver and PO Paulino’s BWCs confirm that they were deactivated after § 87(2)(b) was searched within the cell block. § 87(2)(g) it is recommended

that Allegation L be closed as within NYPD guidelines.

Allegation (M) Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, Lieutenant Gabriel Cuevas failed to provide § 87(2)(b) with a business card.

Allegation (N) Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, Police Officer Stefan Weaver failed to provide § 87(2)(b) with a business card.

Allegation (O) Abuse of Authority: At the 75th Precinct stationhouse in Brooklyn, Police Officer Andrew Paulino failed to provide § 87(2)(b) with a business card.

At 04:53 of PO Weaver's BWC (BR 3), § 87(2)(b) holds up the identification to PO Weaver's camera to show that a piece of his license had broken off. § 87(2)(b) then requests everyone's cards. PO Paulino and PO Weaver take out cards and appear to be filling them out. Lt. Cuevas tells § 87(2)(b) mother that he is fine. § 87(2)(b) states that he is not fine and asks what law he broke. The camera is covered as PO Weaver fills out his business card. At 05:23, the camera uncovers and it appears that Lt. Cuevas has § 87(2)(b) pushed up against the trunk of his vehicle. PO Weaver and PO Paulino handcuff § 87(2)(b).

At 05:14 of Paulino's first BWC (BR 4), Lt. Cuevas grabs § 87(2)(b) by both arms, pushes him against the rear of his vehicle, and tells his officers to "lock him up" several times. PO Paulino grabs § 87(2)(b) left wrist and tries to put it behind his back while § 87(2)(b) family members yell in the background. PO Weaver places § 87(2)(b) other hand behind his back.

§ 87(2)(b) (BR 10) stated that after his license was damaged, he asked for all of the officer's business cards; however, he did not receive that. § 87(2)(b) was then transported to the 75th Precinct stationhouse. After one or two hours when § 87(2)(b) was released, he exited the stationhouse with PO Weaver, PO Paulino, and Lt. Cuevas. Prior to entering the police vehicle, Lt. Cuevas asked § 87(2)(b) if they could be cool. Lt. Cuevas asked § 87(2)(b) not to say anything on BWC. Lt. Cuevas then activated his BWC and again asked § 87(2)(b) if they could be cool. § 87(2)(b) agreed so he could play along, said that he and the officers should stay in touch, and asked for all the officer's business cards. None of the officers provided a card or their identifying information. PO Weaver, PO Paulino, and Lt. Cuevas dropped off § 87(2)(b) back where they interacted with him, in front of § 87(2)(b) and ended their interaction with § 87(2)(b).

PO Weaver (BR 11) testified that he recalled § 87(2)(b) had asked for his business card earlier in the day and PO Weaver provided it when § 87(2)(b) was in the cell. PO Weaver did not recall whether PO Paulino and Lt. Cuevas also provided their business cards to § 87(2)(b) while he was in the cell. During the walk to the police vehicle, § 87(2)(b) did not ask the officers for their business cards.

Lt. Cuevas (BR 12) stated that § 87(2)(b) asked for the officers' business cards while still at the rear of the vehicle. Lt. Cuevas did not provide his business card while at the rear of the vehicle because § 87(2)(b) was arrested immediately after requesting the business card. The investigation noted that Officers Weaver and Paulino pulled out their business cards, were writing information on them, and were attempting to provide them before Lt. Cuevas instructed them to arrest § 87(2)(b). Lt. Cuevas did not attempt to provide § 87(2)(b) with a business card before he arrested him because he did not have the opportunity to (because he arrested him). Lt. Cuevas never provided § 87(2)(b) with his business card at a later time, but PO Weaver filled out a business card on Lt. Cuevas' behalf with his information and gave it to § 87(2)(b) during the arrest process. This action counted as Lt. Cuevas giving § 87(2)(b) his information and he did this because he ran out of business cards. Lt. Cuevas did not see PO Weaver give § 87(2)(b) his information on a business card. Lt. Cuevas did not recall whether he ever verbally provided his name and rank to § 87(2)(b) and did not recall whether he ever personally provided his information to § 87(2)(b) in any way. Lt. Cuevas never observed Officers Weaver and Paulino provide § 87(2)(b) with their business

cards. It was not Lt. Cuevas's responsibility in a supervisory capacity to ensure his officers provided their business cards to § 87(2)(b) when asked because they gave § 87(2)(b) their cards during the arrest process (Lt. Cuevas was not present for the entire process). Regarding whether Lt. Cuevas believed the cards were given or if he knew this to have happened, he stated he had instructed the officers to do so. § 87(2)(b) was released with a c-summons for disorderly conduct and was standing in the lobby. Lt. Cuevas was concerned about § 87(2)(b) whereabouts given he had left his cellphone in his vehicle, had a large amount of gold jewelry on his person, and Lt. Cuevas did not want him walking home this way. Lt. Cuevas decided to take § 87(2)(b) back to his residence so he would be safe at home and the officers drove him back. Lt. Cuevas did not recall how long after § 87(2)(b) was placed in the cell that he took him back. Lt. Cuevas did not recall § 87(2)(b) asking for business cards again while on the way to Lt. Cuevas's vehicle. Lt. Cuevas reactivated his BWC when § 87(2)(b) was being taken back home but did not recall the timestamp for this. He believed all the officers reactivated their BWCs during this time.

PO Paulino (BR 13) testified that after § 87(2)(b) license was damaged, § 87(2)(b) requested business cards from the officers. PO Paulino did not have a chance to provide his business card to § 87(2)(b) as he took his business card out and was filling it out, but then was directed by Lt. Cuevas to place § 87(2)(b) under arrest. PO Paulino did not know what happened with his business card. After § 87(2)(b) was released from the 75th Precinct stationhouse, PO Paulino did not recall if § 87(2)(b) requested business cards again. PO Paulino noted that had he been asked again, he would have provided the business cards.

Officers should carry Right to Know business cards and should provide them at the end of a pedestrian stop where an officer has reasonable suspicion of criminality, frisks, and searches of persons, except when a summons is issued, arrest is made, or if there are exigent circumstances present as well as when requested. Officers are not required to provide business cards when a summons is issued NYPD Administrative Guide Procedure 304-11 (BR 28).

§ 87(2)(b) testified that he asked for all three officer's business cards both at the scene and after he was released from the stationhouse. Only § 87(2)(b) first request is captured on BWC and also captures PO Weaver and PO Paulino filling out their business cards to provide to § 87(2)(b) however before they are able to complete the request, Lt. Cuevas directs the officers to place § 87(2)(b) in handcuffs. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

It is undisputed that Lt. Cuevas did not provide § 87(2)(b) with his business card as he was required to do. It is recommended that **Allegation M** be closed as **substantiated**. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) It is recommended that **Allegation N** be closed as **unable to determine**. As PO Paulino issued § 87(2)(b) a summons during this incident and was not asked for a business card after he issued the summons, § 87(2)(g)

§ 87(2)(b) It is recommended that **Allegation O** be closed as **within NYPD guidelines**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- § 87(2)(b) [REDACTED]
- PO Weaver has been a member of service for six years and has been a subject in two other CCRB complaints and seven other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Paulino has been a member of service for three years and has been a subject in six other CCRB complaints and 18 other allegations, of which two allegations were substantiated:
 - § 87(2)(g) [REDACTED]
- Lt. Cuevas has been a member of service for 16 years and has been a subject in 23 other CCRB complaints and 77 other allegations, 18 of which have been substantiated:
 - Case 201610447 involved substantiated allegations of a stop, frisk, and refusal to provide name and shield number against Lt. Cuevas. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - Case 201804454 involved substantiated allegations of a frisk and search of person against Lt. Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline A.
 - Case 201909824 involved substantiated allegations of frisks and search of persons against Lt. Cuevas. The Board recommended Command Discipline B, and the NYPD imposed Command Discipline B with a loss of five vacations days for each allegation.
 - Case 202002825 involved substantiated allegations of a stop, frisk, and refusal to obtain medical treatment. The Board recommended charges, and the NYPD closed the case without serving charges.
 - Case 202100913 involved a substantiated allegation for failure to provide RTKA card against Lt. Cuevas. The Board recommended Command Discipline A, and the NYPD did not impose any disciplinary action.
 - Case 202103678 involved substantiated allegations of a frisk, discourteous word, and failure to provide RTKA card against Lt. Cuevas. The Board recommended charges, and the NYPD has not yet imposed discipline.
 - § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- § 87(2)(b) filed a Notice of Claim with the City of New York claiming personal, physical, economic, and emotional injuries sustained. § 87(2)(b) is seeking \$1,000,000 as redress (**BR 31**). As of May 1, 2024, the New York City Comptroller's Office does not have any records of a 50H hearing related to this incident (**BR 37**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 6

Investigator:	<u>Tahreem Khan</u>	<u>Inv. Tahreem Khan</u>	<u>May 1, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>4/29/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date